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**Lina Khan points to
Figma IPO as vindication
of M&A scrutiny**

A surprising figure is celebrating Figma's successful IPO: Lina Khan, former chair of the Federal Trade Commission (FTC).

In a Friday afternoon [post on X](#), Khan linked to [an article](#) about [Figma's impressive first day of trading](#) and argued the IPO is “a great reminder that letting startups grow into independently successful businesses, rather than be bought up by existing giants, can generate enormous value.”

Khan was alluding to a \$20 billion deal for Adobe to acquire Figma that [fell through](#) back in 2023. While Adobe cited the lack of a “clear path” to approval from the European Commission and the U.K. Competition and Markets Authority, the acquisition also faced regulatory scrutiny in the United States over concerns that it could prevent Figma from being an “effective competitor” to Adobe.

Khan was FTC chair at the time, leading the agency to challenge Big Tech on fronts such as startup acquisitions — to the point that companies tried to avoid this scrutiny with “reverse acqui-hires” in which they hired key team members and licensed technology rather than acquiring startups outright. (The practice [seems to be continuing](#) despite Khan's departure from the FTC.)

While her aggressive stance led to intense criticism from corners of the tech industry, [she defended her approach](#) by saying that only a tiny percentage of deals received “a second look” and arguing that

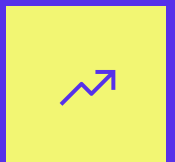
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founders would ultimately benefit from “a world in which you have six or seven or eight potential suitors” rather than “just one or two.”

And although Khan — who’d been appointed by President Joe Biden — [resigned at the start](#) of the second Trump administration, her comments Friday paint the Figma IPO as a vindication for her approach, calling the IPO “a win for employees, investors, innovation, and the public.”

Of course, Khan’s critics are more likely to see Figma’s success as coming despite regulatory scrutiny, not because of it. For example, Wedbush Securities analyst Dan Ives [told Business Insider](#), “Figma is a massive success, but it’s because of the company’s innovative growth and not due to the FTC and [Khan].”

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Anthony Ha is TechCrunch’s weekend editor. Previously, he worked as a tech reporter at Adweek, a senior editor at...

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Biden elevates tech antitrust crusader Lina Khan to FTC chair

Taylor Hatmaker — 10:28 AM PDT · June 15, 2021

The Senate confirmed Big Tech critic and prominent antitrust scholar [Lina Khan as FTC Commissioner Tuesday](#). In a strong and surprising signal that the tech industry is overdue for some intense regulatory scrutiny, Biden elevated the newly-confirmed Khan to chair the agency the same day.

Khan was confirmed in a 69-28 vote, with Republicans joining Democrats in a rare show of bipartisan support for Khan's ideas on reining in tech's most powerful companies. As FTC chair, Khan will replace Rebecca Kelly Slaughter who moved into the role of acting chairwoman in January.

"It is a tremendous honor to have been selected by President Biden to lead the Federal Trade Commission," Chair Khan said in a statement. "I look forward to working with my colleagues to protect the public from corporate abuse."

An associate law professor at Columbia, Khan's star rose with the [publication of a landmark paper](#) examining how the government's outdated ways of identifying monopolies have failed to keep up with modern business realities, particularly in tech. In Khan's view, that regulatory failure has allowed the biggest tech companies to consolidate unprecedented wealth and power, in turn making it even more difficult to regulate them.

I'm so grateful to the Senate for my confirmation. Congress created the FTC to safeguard fair competition and protect consumers, workers, and honest businesses from unfair & deceptive practices. I look forward to upholding this mission with vigor and serving the American public.

— Lina Khan (@linakhanFTC) [June 15, 2021](#)



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President Biden [nominated Khan back in March](#), sending an early message that Biden would not extend the warm relationship Big Tech companies enjoyed with the White House under former President Obama.

Khan's confirmation is a sign that the agency will be prioritizing tech antitrust concerns, a priority that will run parallel to Congressional efforts to bolster the FTC's enforcement powers. The FTC famously imposed a \$5 billion fine on Facebook for privacy violations in 2019, but the record-setting fine was only a glancing blow for a company already worth more than \$500 billion.

Last week, Congress revealed a long-anticipated package of bipartisan bills that, if passed, would overhaul tech's biggest businesses and redraw the industry's rules for years to come.

A [previous bill proposed by Sen. Amy Klobuchar](#) would set aside a pool of money that the FTC could use to create a new division for market and merger research, one step toward modernizing antitrust enforcement to keep up with relentless growth from tech's most powerful giants.

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[Lina Khan's timely tech skepticism makes for a refreshingly friendly FTC confirmation hearing](#)

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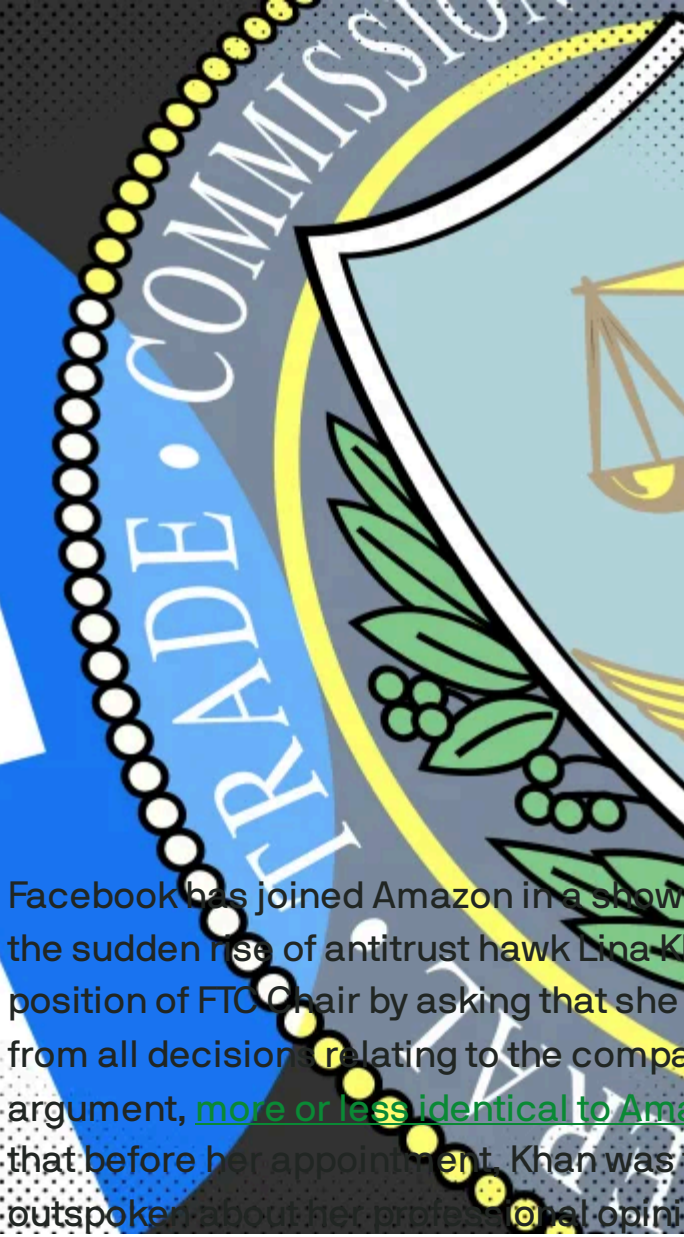
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Facebook is shook, asks for removal of FTC Chair Khan from antitrust cases against it

Devin Coldewey — 11:29 AM PDT · July 14, 2021

Facebook has joined Amazon in a show of alarm at the sudden rise of antitrust hawk Lina Khan to the position of FTC Chair by asking that she be recused from all decisions relating to the company. The argument, [more or less identical to Amazon's](#), is that before her appointment, Khan was too outspoken about her professional opinion that companies like these are in violation of antitrust rules.

In a letter filed with the FTC [and obtained by the WSJ](#), which the agency could not provide and declined to

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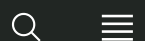
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Neither the FTC nor Khan in any other capacity have responded to the recusal requests from Facebook and Amazon. She did note in her nomination proceeding that recusal requests like these do happen, and are resolved on a case-by-case basis (unlike automatic recusals for things like financial or personal interest). Perhaps even now she is meeting with the ethics experts at the agency.

9 reasons the Facebook FTC settlement is a joke

Khan has, however, certainly made her policy positions known in numerous articles and papers, many of which have argued that antitrust regulators have been highly conservative in their interpretation and deployment of their legal powers, and equally permissive in their oversight of the current crop of enormous tech companies. Things like acquiring competitors, artificially lowering prices to pressure a market or misrepresenting the collection and use of customer data have gone either unchallenged or minimally punished.

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In particular, she acted as counsel for the House's Investigation of Competition in Digital Markets, [an antitrust report issued last fall](#). Amazon and Facebook lean on cases from 1966 and 1970 where an FTC Commissioner was recused for "prejudgment" of a case during a congressional investigation in which he participated. It's a promising hook to hang a case on to be sure, but the circumstances are by no means equivalent. I'm not a lawyer, but it seems to me that no case or even specific allegations have been prejudged, only the general idea that Facebook, Apple, Google and Amazon all either have monopolies or otherwise possess market power. (They didn't care much when the report was issued.)

[Big tech blows a collective raspberry at the House's antitrust report](#)

The main finding of the House report, in fact, was arguably that there could be no legal case because existing laws and regulations are insufficient. Certainly Khan has shouted this from the rooftops for some years now — but the conclusion is a legislative matter, not an FTC one. It would be mighty difficult for Khan to have prejudged an antitrust case predicated on laws that haven't yet been written.

Khan's FTC has [suffered an early setback](#) on her watch, though not of her making, in the dismissal of some complaints in the agency's current antitrust case against Facebook. It was for lack of evidence that the company exerts monopoly control over social media that the judge told the FTC to come back and try again. Perhaps Khan intends to remedy that with a supplemented filing, or perhaps she will take the loss and muster her forces for another go in a year or two — but either way it is probably best

to resolve the question of her alleged “prejudgment” before that decision is announced. (The FTC declined to speculate as to whether the recusal request would affect the current proceedings.)

But the agency also has explicit backing from the White House in the form of [President Biden’s request](#) that it prioritize “dominant internet platforms, with particular attention to the acquisition of nascent competitors, serial mergers, the accumulation of data, competition by ‘free’ products, and the effect on user privacy.” So Khan probably isn’t feeling the sting of the aforementioned legal challenge.

The petitions filed by Amazon and Facebook have near-zero risk for the companies and an outside chance at provoking a recusal, so it makes sense strategically to file them. They also provide breadcrumbs later for their inevitable objections to the FTC’s (under Khan, equally inevitable) allegations of monopolistic practices. The legal repercussions are hard to predict but it is usually better to have a complaint on the table already rather than bring it out late in the process.

Given Chair Khan’s position that the FTC itself needs to be overhauled and empowered in order to bring actions like this against companies like Facebook, it seems clear that all these are merely the opening gambits in a long, long game.

[Biden’s sweeping executive order takes on Big Tech’s ‘bad mergers,’ ISPs and more](#)

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Devin Coldewey

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Biden will nominate Big Tech critic and antitrust star Lina Khan to the FTC

Taylor Hatmaker — 1:29 PM PDT · March 22, 2021

Biden didn't campaign on getting tough against Big Tech, but his early actions are speaking louder than

his words.

The White House [confirmed](#) its intentions to nominate Lina Khan to the FTC Monday, sending a clear signal that his administration will break from the Silicon Valley-friendly precedents of the Obama era. Politico [first reported](#) Biden's planned nomination of Khan, which will be subject to Senate confirmation, earlier this month.

Lina Khan is a star of the antitrust movement, insofar as a topic like regulating big business can produce one. Khan is best known for a paper she published as a law student in 2017 called "[Amazon's Antitrust Paradox](#)." The paper argues that thinking about what qualifies as monopolistic behavior hasn't kept pace with how modern businesses operate, particularly within the tech sector.

She believes that a modernized approach to antitrust must look at market forces in a big picture way instead of only examining traditional measures like [price and output](#):

"My argument is that gauging real competition in the 21st century marketplace — especially in the case of online platforms — requires analyzing the underlying structure and dynamics of markets. Rather than pegging competition to a narrow set of outcomes, this approach would examine the competitive process itself. Animating this framework is the idea that a company's power and the potential anticompetitive nature of that power cannot be fully understood without looking to the structure of a business and the structural role it plays in markets. Applying this idea involves, for example, assessing whether a company's structure creates certain anticompetitive conflicts of interest; whether it can cross-leverage market advantages across distinct lines of business; and whether the structure of the market incentivizes and permits predatory conduct."

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As associate law professor at Columbia, Khan also contributed to a comprehensive [report from the House's antitrust subcommittee](#) last year that set the stage for major antitrust reform that could trim back Big Tech's considerable overgrowth.

Khan isn't the only high-profile tech antitrust crusader in the Biden administration's orbit. In early March, Biden named Columbia law's [Tim Wu](#) to shape technology and competition policy at the National Economic Council. Wu came up with the term "net neutrality" and is well known as an advocate for an open internet. In 2018, Wu authored "The Curse of Bigness: Antitrust in the New Gilded Age," a treatise calling out corporate consolidation in tech as a looming political and economic threat.

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Sen. Amy Klobuchar, who is leading tech-focused antitrust reform efforts through the Senate's own antitrust subcommittee, praised Khan's nomination. "We need all hands on deck as we work to take on some of the biggest monopolies in the world, and President Biden is making his commitment to

competition policy clear,” Klobuchar said in a statement provided to TechCrunch.

“Lina’s experience working both in Congress and at the Federal Trade Commission and as an advocate for competitive markets will be vital as we advance efforts to strengthen enforcement and protect consumers.”

Biden’s infrastructure plans could boost startups



As President-elect Joe Biden readies his transition team and sets the agenda for his first 100 days in office, startups can expect to see some movement

on long-stalled infrastructure initiatives that could mean big boosts to their business. Infrastructure is high on the list of priorities of the incoming Biden Administration as the former vice ... Continue reading

New antitrust reform bill charts one possible path for regulating big tech



As Democrats settle into control of both chambers of Congress, signs of the party’s legislative priorities are starting to manifest. So far, lawmakers’ interest

in reimagining tech’s regulatory landscape appears to be alive and well. Sen. Amy Klobuchar (D-MN) is out with a new proposal for antitrust reform that would create more barriers for big ... Continue reading

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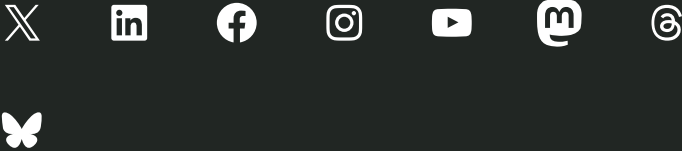
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